

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JUNJUN LUO,

Petitioner

VS.

ZHENG CHIU CHAN,

Respondent

) Case Number: FDI-26-802522

) Hearing Date: June 9, 2026

) Hearing Time: 9:00 AM

) Department: 403

) Presiding: BOBBY P. LUNA

REQUEST FOR ORDER: SPOUSAL OR PARTNER SUPPORT, ATTORNEY FEES AND COSTS

TENTATIVE RULING

The parties are ordered to appear. The parties may appear in person in Dept. 403 or remotely by Zoom video. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth above.

A. Procedural History

- 1) The parties are Petitioner Junjun Luo and Respondent Zheng Chiu Chan.
- 2) On 1/29/26, Petitioner filed a Petition for Dissolution indicating the date of marriage is 3/11/19 and date of separation is 10/3/25 for a marriage of 5 years and 6 months.
- 3) On January 29, 2026, Petitioner filed a Request for Order seeking orders for spousal support and attorney fees. Petitioner requests \$2,500 per month in pendente lite spousal support and \$10,000 in attorney fees.
- 4) On January 29, 2026, Petitioner filed an Income and Expense Declaration, which includes the following information:
 - a. Filing Status: Married filing jointly; 2 exemptions
 - b. Other Party's Income: Blank
 - c. Average Monthly Income: (Unemployed since 03/11/19 – Alleges housewife entirety of marriage.)

- d. Cash and checking accounts: Blank
 - e. Total Expenses: \$4,500.00/month (Proposed Needs)
 - f. Attorney Fees Paid: \$6,500.00/month.
- 5) On 3/3/26, Respondent filed a Response and Request for Nullity indicating the date of marriage is 3/11/19 and date of separation is 10/3/25 for a marriage of 5 years and 6 months.
- 6) On March 3, 2026, Respondent filed an Income and Expense Declaration, which includes the following information:
- a. Filing Status: Married filing jointly; 2 exemptions
 - b. Other Party's Income: \$0.00
 - c. Average Monthly Income: \$4200.00/month.
 - d. Cash and checking accounts: \$200.00
 - e. Total Expenses: Blank
 - f. Attorney Fees Paid: Blank
- 7) Respondent did not file a Responsive Declaration.
- 8) At the prior 4/21/26 hearing, the Court ordered, in pertinent part, as follows:
- a. Petitioner's request for Family Code section 2030 attorney's fees is DENIED.
Respondent does not have the ability to pay any of Petitioner's attorney's fees. There does not exist a disparity in access to funds. Respondent's Income and Expense Declarations filed March 3, 2026 indicates he has \$200 in "cash and checking accounts," while Petitioner left blank the "cash and checking" section. Accordingly, each party shall bear their own attorney fees and costs.
 - b. The Court GRANTS Petitioner's request for temporary spousal support. In accordance with the XSpouse report attached hereto and incorporated herein, Respondent is obligated to pay Petitioner temporary spousal support in the amount of \$1,465 per month, effective February 1, 2026.
 - c. Respondent owes Petitioner \$4,395 in temporary spousal support arrears for the period of February 1, 2026 – April 30, 2026. Respondent shall pay Petitioner an additional \$250 per month until this balance is paid in full.

1 d. Commencing 5/1/26, all payments set forth above shall be made by the 1st of every
2 month.

3 e. The Court reserves jurisdiction over the issues of temporary spousal support and Family
4 Code section 2030 attorney's fees.

5 f. The Court continues the matter to 6/9/26 at 9 AM in Dept. 403.

6 g. Respondent shall provide Petitioner's counsel with pay stubs from 2026 by 5/5/26.

7 9) On 5/28/26, Respondent refiled a Response and Request for Nullity.

8 10) On 5/28/26, Respondent filed a Responsive Declaration in opposition to Petitioner's Request for
9 Order. Respondent requests the Court grant a nullity on the basis of fraud. Respondent believes
10 that Petitioner entered the marriage for reasons other than forming a genuine marital relationship
11 (i.e., immigration status and financial gain). Respondent asserts that spousal support is not
12 justified under these circumstances and asserts that Petitioner is self-supporting.

13 **B. Findings and Order**

14 1) **The parties are ordered to appear.**

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